

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 6

City of Waterville

Appendix 1F

Committee Charge: Voter Registration Appeals Board [Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

21-A M.R.S. § 103, Voter Registration Appeals Board
1 M.R.S., Chapter 13, Freedom of Access
City of Waterville Ethics Ordinance (Chapter 18)

Purpose.

The Board shall have jurisdiction to hear and decide appeals of a person who is aggrieved by the decision of the Registrar of Voters to cancel that person's registration in the central voter registration system or to reject that person's voter registration application, in a city or town that has a population of 5,000 or more.

Membership.

Membership shall be comprised of one representative from each of the major political parties who are nominated by the municipal committees of the major political parties for three-year terms. One member is nominated by the clerk of the municipality for a four-year term. When a municipal committee nominates a member to the Registration Appeals Board, it shall also nominate an alternate Board member, who serves if the member nominated by the municipal committee is or becomes unable to serve. The municipal clerk may not serve as a member or alternate member of the Registration Appeals Board.

Scope of Authority.

In accordance with 30-A M.R.S. § 2691(3), the Board's role is to hear oral or documentary evidence and conduct cross-examination for a full disclosure of the facts. Decisions rendered must include a statement of findings and conclusions, as well as the reasons or basis for the findings and conclusions upon all the material issues of fact, law or discretion presented and the appropriate order, relief, or denial of relief. Notice of any decision must be mailed or hand-delivered to the petitioner, the petitioner's representative or agent, the planning board, agency or office and the municipal officers within seven days of the Board's decision.

It is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

Conduct of Business.

The Board is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Board may participate in a matter before the Board where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining members shall make that determination. The Board may review the

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Ethics Ordinance or consult with the Solicitor on conflict of interest questions.

Upon receipt of a complaint by a person aggrieved by the decision of the Registrar, the Chair of the Registration Appeals Board shall immediately fix a time and place for the Board to meet for a prompt hearing. The voter must be given 20 days' advance notice and have the opportunity to testify and to present witnesses and other evidence at the hearing. The hearing is de novo. After the hearing, the Board may affirm, modify, or reverse the decision of the Registrar of Voters. The Board shall issue a decision to the voter in writing and shall provide information on how the voter may appeal the decision, in accordance with Rule 80B of the Rules of Civil Procedure.

Reporting.

Notice of any decision must be mailed or hand-delivered to the petitioner, the petitioner's representative or agent, agency or office and the municipal officers within seven days of the Board's decision.